



DEPARTMENT OF THE NAVY
NAVAL AIR SYSTEMS COMMAND
COMMANDER, FLEET READINESS CENTERS

J&A No. F2553, 26-020

**(CLASS) JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

Commander Fleet Readiness Centers (COMFRC),
N68520 COMFRC Procurement Group,
[REDACTED]

2. Description of the Action Being Approved.

This Class Justification and Approval (CJ&A) authorizes and approves the issuance of this contract action to DMG MORI (CAGE 96XT6), as the Original Equipment Manufacturer (OEM) to provide Repair Services (RS) including but not limited to supplemental repair services, other labor for equipment services including equipment relocation, on-site and off-site training and material for DMG Mori, Mori Seiki, and FASTEMS equipment owned by FRCSW. The DMG MORI owned equipment services and supports multiple FRCSW platforms that require the repair, overhaul, and manufacturing of aircraft parts for, but not limited to, FA-18 C/D/E/F/G, E2/C2, V-22, and H-53. These platforms are included in the Fleet Infrastructure Optimization Plan for FRCSW along with other Fleet Readiness Center depots to sustain and modernize aircraft, engines, components, and support equipment. This CJ&A has no foreseen expiration date, however, it will expire five (5) years from contract award.

3. Description of Supplies/Services.

The services required are described in Section 2 of this CJ&A. Material required consists of machine pallets, chillers, and other miscellaneous machine parts required to support machine operation. Labor will provide both repair and support services as needed. Training consists of on-site requested training and training provided by the DMG Mori Academy at the DMG Mori campus in Hoffman Estates, IL. The services are required as soon as possible, and the BPA will have a five (5) year ordering period.

Estimated Dollar Value

NWCF	FY26-31 Total Material and Labor
Base	[REDACTED]
OY 1	[REDACTED]
OY 2	[REDACTED]
OY 3	[REDACTED]
OY 4	[REDACTED]
Total	[REDACTED]

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 3204(a)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority.

All operating software used by DMG MORI products is proprietary. No modifications, and therefore repairs, can be made by any personnel other than DMG MORI personnel. DMG MORI uses user interface layers inside the CELOS software, which are proprietary and require DMG Mori keys to operate. The OEM also uses Numeric Control and Programmable Logic Control software, which DMG Mori developed. These applications and software are extensively customized and require special access privileges. DMG Mori does not authorize servicing to be done by Third Parties unless special access is given via a Service Level Smart Key, which is not sold to Third Parties. A Service Level Smart Key is required for the type of complex services required for this effort, and without the key, repairs are not possible.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Based on the market research conducted, it was determined that no other responsible source besides DMG MORI was identified capable of satisfying this effort. Under contract N6852025C0007, FRCSW attempted to obtain three (3) separate repair efforts on the OEM equipment from a contractor who was not the OEM. The contractor was unable to perform any of the repairs independently of the OEM. The first repair effort could only be completed by the contractor with OEM support, the second repair effort remains incomplete, and the third was repaired by Government personnel with OEM support. Per the reasons listed in paragraph 5, and as demonstrated by recent contracting efforts, it is not practical for any company other than the OEM, DMG Mori, to provide the required supplies and services.

7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this CJ&A will be fair and reasonable. Based on market research and historical data, pricing is comparable to other Computer Numeric Controlled manufacturers and repair contracts.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5 above, the Government has no plans at this time to compete future contracts for the types of supplies/services covered by this document. The Government has analyzed whether alternate sources could be used. Per recent contracting effort N6852025C0007, historical data shows the OEM is the only qualified and capable contractor able to fulfill this requirement. Future requirements will be evaluated to determine whether an alternate source can be used to increase competition. COMFRC Procurement Group will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

Technical Cognizance:

[Redacted Signature Block]

Signature Name (Printed) Phone No. Date

Requirements Cognizance:

[Redacted Signature Block]

Signature Name (Printed) Phone No. Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient.

[Redacted Signature Block]

Signature COMFRC Legal Counsel Phone No. Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature Block]

Signature Name (Printed) Phone No. Date

APPROVAL

Upon the basis of the above justification, I hereby approve, as Procuring Contracting Officer, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 3204(a)(1).

[Redacted Signature Block]

Signature Name of Approving Official Date